

GENERAL TERMS AND CONDITIONS FOR ORACLE'S PROPOSAL

Oracle America, Inc. ("Oracle") is pleased to have the opportunity to provide the State of Michigan Department of Technology, Management and Budget - Procurement ("you") with a proposal for Cloud Services, Request for Proposal No. 250000000414, issued December 6, 2024 ("the proposal") via your Third-Party Portal Provider, SIGMA (the "Third-Party Portal Provider").

The proposal is subject to the below general terms and conditions (these "general terms and conditions"). **These general terms and conditions will prevail in the event of any inconsistencies with any terms and conditions of the Request for Proposal ("RFP"), or any terms and conditions provided by your Third-Party Portal Provider.**

Evaluation

- The proposal is for your evaluation purposes only. The proposal is not for incorporation into any contract that may result between you and Oracle for products and/or services, nor does it act to amend any existing agreements or orders. Neither you nor Oracle shall be obligated in any way until the parties have executed a final agreement for the applicable Oracle products and/or services. **Oracle disclaims and takes exception to any terms or statements contained in or with the RFP, or any terms or conditions provided by Your Third-Party Portal Provider, that (i) seek to impose legal or operational requirements on Oracle with regards to its products or the delivery of its services or (ii) conflict with these general terms and conditions.**
- The proposal (and all Oracle statements and responses contained herein), as well as any related demonstrations, are provided on an "AS-IS" basis and shall not be construed as creating any representation or warranty including, but not limited to, implied warranties of fitness for a particular purpose, satisfactory quality or merchantability, representations or warranties as to performance, or product or service availability. All representations and warranties will be as stated in the executed final agreement for the applicable Oracle products and/or services.
- The proposal is based upon information that you have provided to Oracle. You are solely responsible for determining if the Oracle products and/or services described in the proposal meet your requirements, including any regulatory or legal obligations. Any "Yes/No" / "Compliant/Non-Compliant" / "In place" or like indicators provided by Oracle in the proposal, such as in technical and functional matrices, must be read in the context of Oracle's explanations and assumptions provided in the proposal.

Ownership and Export

- Oracle's proposal materials are the copyrighted property of Oracle. You do not acquire any intellectual property rights in Oracle property under the proposal.

Confidentiality

- Oracle confidential information is provided to you as Oracle proprietary and confidential information under these general terms and conditions.
- For purposes of the proposal, Oracle confidential information will include anything Oracle identifies as "Oracle Confidential – Trade Secret Information" or "Oracle Confidential" as part of the proposal, as well as any information and responses in the following categories ("Confidential Categories"): pricing, functional/technical matrices and/or narrative responses and/or customized screenshots or product graphics, customer references or Oracle employee resumes. Where technically possible, individual Oracle responses have been marked as "Oracle Confidential – Trade Secret Information" or "Oracle Confidential" information.
- In addition, all responses included by Oracle in any tabs or text boxes of the proposal, including any Yes/No responses, that fall under the foregoing Confidential Categories are considered Oracle confidential information, whether or not marked as such.

Use or disclosure of information contained in the proposal is subject to these general terms and conditions.

- Subject to these general terms and conditions, you may use Oracle confidential information solely for the purpose of evaluating your potential acquisition of the applicable Oracle product and/or services discussed in the proposal, and you may not disclose such information outside the government or your organization (as the case may be). You further may not disclose the confidential information in this proposal to any third party without Oracle's prior written consent. In addition, you may disclose confidential information only to those employees, agents and subcontractors who have a "need to know" such information in connection with the evaluation of the proposal; provided that, their use remains limited to the foregoing purpose and subject to confidential treatment of the proposal pursuant to terms no less protective than those included hereunder; you are responsible for ensuring that your employees, agents and subcontractors comply with these general terms and conditions. Notwithstanding the foregoing, You agree that the Third-Party Portal Provider may access the proposal solely for purposes of providing you with the proposal's content through the portal, subject to these general terms and conditions; you are responsible for Third-Party Portal Provider's compliance with such terms and conditions.
- If there is a request to disclose Oracle confidential information, including under open records laws, Oracle requests prompt notice from you so that Oracle may have the opportunity to defend its confidential information against such a request, including seeking judicial protection, if appropriate.

Contract Terms

- Any Oracle technical support services, consulting services, cloud service or other services (collectively "services") will be provided in accordance with the terms of your new Oracle Cloud Services Agreement as may be amended by you and Oracle following award of the contract to Oracle (the "Agreement") and any other mutually agreed upon terms and one or more Oracle ordering document(s) governed by such Agreement.
- You may not rely on any future availability of any program(s) or program/computer hardware/operating system combination in evaluating Oracle's proposal or awarding a contract to Oracle.

Validity

Oracle's proposal is valid until August 31, 2025, unless otherwise mutually agreed in writing by you and Oracle.